JUDGE MANFRED LACHS AND THE PRINCIPLE OF *JUS COGENS*

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Introduction

Manfred Lachs, following the tradition of many liberal and far-seeing jurists, perceived that law is a living institution designed to serve the interests, values, wants, and needs of an increasingly interdependent and dynamic world community. His background and experience led him to inquire into the nature and utility of a peremptory norm of general international law (*jus cogens*). Following a thoughtful assessment of the emergence of the *jus cogens* norm, which he referred to variously as a "notion," "rule," "general rule," and "principle," he declared in 1984 that *jus cogens* "is an important new chapter of international law . . ."[1] He then added that *jus cogens* "may grow at a greater speed than envisaged at its cradle."[2]

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1 M. Lachs, *The Development and General Trends of International Law in Our Time*, 169 RECUEIL DES COURS D'ACADEMIE DE DROIT INTERNATIONAL [R.C.A.D.I.] 9, at 211 (No. 4, 1984). Chapter 12 entitled "Jus Cogens" consists of 10 pages at 201-211. The interest in the *jus cogens* principle has resulted in an extended bibliography. Important contributions have been made by J. SZTUCKI, *JUS COGENS* AND THE VIENNA CONVENTION ON THE LAW OF TREATIES, A CRITICAL APPRAISAL (1974); L. HANNIKAINEN, PEREMPTORY NORMS (*JUS COGENS*) IN INTERNATIONAL LAW: HISTORICAL DEVELOPMENT, CRITERIA, PRESENT STATUS (1988); E. Suy, *The Concept of Jus Cogens in Public International Law, in* 2 CARNEGIE ENDOWMENT FOR INTERNATIONAL PEACE, PAPERS AND PROCEEDINGS 17 (1967); R. Ago, *Droit des Traités à la Lumière de la Convention de Vienne*, 134 R.C.A.D.I. 320-327 (No. 3, 1972); C.L. ROZAKIS, THE CONCEPT OF *JUS COGENS* IN THE LAW OF TREATIES (1976); A. Gómez Robledo, *Le jus cogens: sa genèse, sa nature, ses fonctions*, 172 R.C.A.D.I. 9 (No. 3, 1982); L.A. Alexidze, *Legal Nature of Jus Cogens in Contemporary International Law*, 172 R.C.A.D.I. 213 (No. 3, 1981); G. Gaja, *Jus Cogens Beyond the Vienna Convention*, 172 R.C.A.D.I. 271 (No. 3, 1981); A. Verdross, *Forbidden Treaties in International Law*, 31 AM. J. INT'L L. 571 (1937); A. Verdross, *Jus Dispositivum and Jus Cogens in International Law*, 60 AM. J. INT'L. L. 55 (1966); G. Schwarzenberger, *International Jus Cogens?* 43 TEXAS L. REV. 455 (1964); V.S. Rao, *Jus Cogens and the Vienna Convention on the Law of Treaties*, 14 INDIANA J. INT'L L. 366 (1974); G.O. Christenson, *The World Court and Jus Cogens*, 81 AM. J. INT'L. L. 93 (1987).

2 *Id.*

Scholars writing in French regularly refer to *jus cogens* as a "*règle impérative*" or as a "*norme impérative*." Article 53 of the May 22, 1969 Vienna Convention on the law of Treaties[3] bears the title "Treaties conflicting with a peremptory norm of general international law (*jus cogens*)."[4] The article states:

> "A treaty is void if, at the time of its conclusion, it conflicts with a peremptory norm of general international law. For the purposes of the present Convention, a peremptory norm of general international law is a norm accepted and recognized by the international community of States as a whole as a norm from which no derogation is permitted and which can be modified only by a subsequent norm of general international law having the same character."[5]

Judge Lachs and the Superior-Inferior Dichotomy

The proper identification of terminology allows for an understanding of the substantive meaning of the words adopted by the legal scholars who crafted Article 53. The term "norm" or its French equivalent "*règle*" is not to be identified with the English word "rule" which occupies in terms of importance or significance a somewhat lower rung on the legal totem pole than does the term "norm" or "principle." The fundamental significance of *jus cogens* elevates it to higher legal status than that of a rule. This is true even though rules are often characterized as being consequence oriented. Although Article 53 provides that a treaty which is in conflict with the *jus cogens* principle is "void," this does not detract from the fact that *jus cogens* is a peremptory legal norm.

Judge Lachs in adopting the superior-inferior dichotomy referred to the "lower floors of the law."[6] By inference the upper floors will contain the superior norms.

Reasons for Superior Norms

In order to support a superior-inferior dichotomy, it is necessary to identify criteria whereby there may be a differentiation between that which must be deemed superior and that, which being subordinate to and inconsistent with the superior, must be void.

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3 U.N.G.A. Doc.A/CONF.39/27 (23 May 1969); 63 AM. J. INT'L L. 874 (1969); 8 I.L.M. 679 (July 1969). The agreement entered into force on January 27, 1980. The United States voted for the convention. The President submitted it to the Senate for its advice and consent on November 22, 1971. The United States has not become a party to the agreement.

4 *Id.*

5 *Id.*

6 *See* M. Lachs, *supra* note 1, at 202.

According to Judge Lachs the basic and underlying considerations supporting the dichotomy find support in both moral and practical grounds. In his brief canvass of the subject, in referring to the views of scholars, going back to the time of Wolff and Vattel, he relied on the practical need for "public order," while also referring to the possibility of "immoral obligations."[7] With his reference to public order Judge Lachs shared the outlooks of proponents of a positive law approach who linked *jus cogens* "with the notion of international public policy (or, order)."[8]

In his 1984 lectures, Judge Lachs indicated an awareness of the philosophical, practical, moral, social, and historical forces at work. The brevity of his analysis prevented a full exposition of the factors supporting the *jus cogens* principle. However, since he was a member between 1962 and 1966 of the International Law Commission (ILC), which drafted the proposed convention, he knew that underlying the concept of a peremptory norm was the philosophical assumption that the norms would serve the higher values and interests of States and of mankind at large. His philosophical commitment to the goal of fundamental justice and to the concomitant effective utilization of institutions provided support for his acceptance of the norm. He realized that the presence of the norm can contribute to the existence of a general juridical expectation that important goals can be identified, promulgated, and realized.

From a practical point of view the principle acknowledges the existence of a constitutive legal norm. This allows for the identification of superior norms, *e.g.*, those from which no derogation may take place. This can be supported because rationally, and in the very nature of things, there are higher or supreme considerations as opposed to lower or subordinate ones. The principle may also be based on a view that the realization of valued goals can be achieved only through processes which depend on the presence of both higher and lower ranges of responsibility and authority.

A practical illustration of such formal authority and process is reflected in the experience of the United States. According to Article 6, paragraph 2 of the United States Constitution it "shall be the supreme law of the land. . . ." The U.S. Supreme Court confirmed this principle in 1803 when it held that a national statute inconsistent with the Constitution would have to give way.[9] *Jus cogens* possesses the merit of providing order and structure. With the general acceptance of this fundamental distinction practical institutions can engage in a decisional process.

Through the acceptance of lesser norms within a hierarchical structure some of the abrasiveness and counter-productivity, which would

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7 *Id.* Earlier writers had frequently referred to "*bonnes moeurs*" and "*bonos mores.*"

8 J. SZTUCKI, *JUS COGENS* AND THE VIENNA CONVENTION ON THE LAW OF TREATIES: A CRITICAL APPRAISAL 63 (1974). Compare M. Lachs, *The Law of Treaties - Some General Reflections on the Report of the International Law Commission, in* RECUEIL D'ÉTUDES DU DROIT INTERNATIONAL EN HOMMAGE À PAUL GUGGENHEIM 391 (1968).

9 Marbury vs. Madison, 5 U.S. (1 Cranch) 137, 2 l. E. 60.

exist when levels of authority and priorities are undifferentiated, can be eliminated. Through the identification of basic standards of international conduct the prospect for the rule of law, and all that flows from this concept, including the voiding of certain agreements and expectations, can be materially advanced. Through the acceptance of the primacy of fundamental principles there can be an orderly structuring of the international legal system.

Judge Lachs was explicit in finding support for the principle on moral grounds. With such a foundation there is a prospect that a sensible international public policy and good moral conduct can be realized. He made specific reference to the view advanced by A. Verdross[10] that the norm would rely on the right reason of natural law and would serve the "higher interest of the whole international community."[11]

The attention given to the *jus cogens* principle by the International Law Commission can be attributed, at least in part, to the revival of natural law thinking in the 1920s. O'Connell has concluded that this movement resulted in support for the existence of superior norms which could not be set aside by agreements.[12] The same view was advanced by Tunkin who considered that the writings of Grotius and Vattel supported the proposition that there are legal "principles from which States cannot deviate by an agreement."[13]

There is a close relationship between moral and social grounds for the norm. The high social interest of society, dependent on the existence of world community perspectives, can be served and advanced through the presence of peremptory norms of general international law. The *jus cogens* norm is supported by the view that the satisfaction of the higher interest of the entire community should prevail over opposing and contradictory national preferences, particularly where the latter deviate from *bonos mores* standards.

Although Judge Lachs did not mention specifically the support provided to the *jus cogens* norm by historical experience, it is evident that he was guided by historical considerations in seeking to understand the ultimate utility of the principle. He was much interested in the role and function of customary international law and community serving values

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10 A. Verdross, *Forbidden Treaties in International Law*, 31 AM. J. INT'L L. 572 (1937).

11 *See* M. Lachs, *supra* note 1, at 337, n. 762. *See also* his reliance on Ch. De Visscher regarding the "moral" and "theoretical" aspects of the role of *jus cogens*, *id.* at 211.

12 D.P. O'CONNELL, 1 INTERNATIONAL LAW 244-345 (1970).

13 G.I. Tunkin, *Jus Cogens in Contemporary International Law*, 3 TOL. L. REV. 107 (No. 1, 1971). For an analysis of the role of legal and philosophical writings between the Treaty of Westphalia in 1648 and the Congress of Vienna (1814-1815) on the *jus cogens* principle, *see* L. Hannikainen, *supra* note 1, at 30-37.

lodged in the received practices of the past.[14] He urged that among the criteria to be consulted in determining the existence of a peremptory norm was "the object and purpose of the rule in question."[15]

In sum, Judge Lachs, founding his conclusions upon the existence of suitable criteria, was supportive of the broad proposition encompassed in the expression *jus cogens*. He certainly would have agreed that the combined philosophical, practical, moral, social, and historical considerations that have been mentioned have allowed the *jus cogens* principle to "become firmly rooted in the legal conviction of the community of States."[16]

Judge Lachs drew special attention to "an important element"[17] appearing in the definition of the *jus cogens* principle[18] namely that it must be accepted and recognized by the international community "*as a whole*."[19] He explained that the words "as a whole" indicated that "acceptance is not required by each and every member of the international community."[20] Supporting this outlook was his view, which certainly is the preponderant view on the subject, that "even the basic principles of international law are not required to be expressly accepted by every State."[21]

The International Law Commission and *Jus Cogens*

Hersch Lauterpacht as special rapporteur on the law of treaties in 1953 suggested that "a treaty, or any of its provisions, is void if its performance involves an act which is illegal under international law and if it is declared so to be by the International Court of Justice."[22] This basic proposition, following much revision while still retaining its initial thrust, became Article 53 of the ILC's 1966 final draft. In 1958 the special rapporteur was Gerald Fitzmaurice. He urged that "it is only if the treaty involves a departure from or conflict with absolute and imperative rules or prohibitions of international law in the nature of *jus cogens* that a cause of invalidity can arise."[23] From 1961 the special rapporteur was Sir

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14 *Supra* note 1, at pp. 175-178 and 253-261. These are Chapter 11 entitled "International Rights and Obligations: Pacta Sunt Servanda and Good Faith," and Chapter 15 entitled "The Effectiveness of International Law."

15 *See* M. Lachs, *supra* note 1, at 207.

16 E. Schwalb, *Some Aspects of International Jus Cogens as Formulated by the International Law Commission*, 61 AM J. INT'L LAW 951 (1967).

17 *See* M. Lachs, *supra* note 1, at 210.

18 Lachs used the word "rule".

19 *See* M. Lachs, *supra* note 1, at 10. Italics in original.

20 *Id.*

21 *Id.*

22 2 Y.B. Int'l. L. Comm'n 154 (1953).

23 2 Y.B. Int'l. L. Comm'n 27 (1953).

Humphrey Waldock. In his 1966 report on behalf of the Commission he observed that "a *jus cogens* rule is one which cannot be derogated from but may only be modified by the creation of another general rule which is also of a *jus cogens* character."[24]

Judge Lachs, as a member of the ILC between 1962 and 1966, was fully engaged in the discussion with Commission members leading to the proposed agreement. Also serving on the Commission during this critical time were T.O. Elias, E. Jiménez de Aréchaga, S. Rosenne, G.I. Tunkin, and A. Verdross as well as others. All were aware that the *jus cogens* principle appeared "to meet with a large measure of approval . . . [and that only one government] really questions the existence today of a concept of rules of *jus cogens* in international law."[25]

During the same period Roberto Ago served on the Commission and later served as the president of the Vienna Conference on the Law of Treaties. In both situations he played important roles in gaining treaty status for the *jus cogens* principle.

Because of the authority of a preemptive norm and the values and interests enshrined in it, it has been necessary to establish the criteria deemed relevant to the identification of *jus cogens*. The criteria, like the norm itself, must be identified, must command general respect, and must be believed in. If this is not the case the criteria will be suspect and the principle will not work.

After there has been an identification of criteria, there remains the challenge of reaching agreement on whether a specific illustration, *e.g.*, a candidate for *jus cogens* status, meets the required criteria. At the present stage of modern international law, with its demonstrated capacity for dynamic growth, those who have addressed themselves to the principle, have, it seems, been impelled to identify their favored concepts. The resulting debate has become, in effect, an unscientific rating process in which favored candidates for *jus cogens* status are being examined in a particularistic, unorganized, and disparate series of academic and official discourses.

Two basic tests can be used to fix the criteria. The first, founded in philosophical considerations, would emphasize what Roberto Ago referred to as the "conscience universelle" of humankind.[26] The second, so close to the heart of American jurisprudence, as well as the product of general history, are the practical considerations which have stood the test of time.[27]

Thus, to achieve *jus cogens* status the substantive principle would have to reflect positively significant morally based social values. It would have to be consistent with the development of a maturing, meaningful, and

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24 2 Y.B. Int'l. L. Comm'n 24 (1966).

25 *Id.* at 23.

26 *See* M. Lachs, *supra* note 1, at 324, n. 32.

27 *See* for example B.N. CARDOZO, THE NATURE OF THE JUDICIAL PROCESS 9-16 (1921); O.W. HOLMES, THE COMMON LAW (1881).

structured world legal system. It would have to command the loyalty of juridical and natural persons who would commit themselves to the principle and be guided by it. The principle would have to contribute to the efficient operation of an acceptable degree of world order including the interdiction of arbitrary behavior on the part of international legal persons. Encompassed in these criteria would be the expectation that there would be a reduction and alleviation of tensions produced by arbitrary activities. A similar, but more limited, assessment has been made respecting *jus cogens* criteria, namely, a moral basis, the importance of the suggested principle to international peace and order, whether the norm is accepted in the world community, and whether the norm will be beneficial to global interests, *i.e.*, "the common good of the international community."[28] The validity of these criteria is beyond dispute.

Viewed from another perspective one might ask whether the non-inclusion of the substantive principle in the realm of *jus cogens* would constitute a violation of *bonos mores*? In the same vein, would the non-inclusion interrupt or severely prejudice historical practices constantly relied upon by the members of the world community? In this connection it has become evident that the customary rules of general international law have influenced the substantive content of the *jus cogens* principle. Suitable responses to these criteria will allow the principle of *jus cogens*, as a dynamic concept, to benefit those who exist within the domain of States, and of States, per se -- both old and new. With the acceptance of criteria for the identification of *jus cogens* a new level of stability can be brought to the constantly changing and practical needs confronting members of the world community.

Appropriate responses would also give encouragement to the hope that the international system can promote the goal of peaceful change. Although Judge Lachs did not frame his assessment of *jus cogens* specifically in the manner just outlined, the present author feels confident that the foregoing fits into Judge Lachs' assessment of the issues.[29]

The Commission and the Substantive Content of Jus Cogens

The Commission was faced with two problems respecting the substantive content of *jus cogens*. First, it had to determine whether to offer a broad delineation or a specific identification on the substance of *jus cogens*. Second, if the latter policy were adopted, there would be a need to specify the favored norms while at the same time offering acceptable reasons for the rejection of the disfavored. Stated somewhat differently, the Commission might have offered specific examples of international legal

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28 W.T. Gangl, *The Jus Cogens Dimensions of Nuclear Technology*, 13 CORNELL INT'L L. J. 77 (1980).

29 M. LACHS, THE LAW OF OUTER SPACE, chapters on "Rights and Obligations of States," "Responsibility," "The Law-Making Process," and "Conclusions," 113-152 (1972).

norms which, in their view, had achieved peremptory status, or it might have opted for an open-ended process permitting identification of such norms over time. The latter approach was adopted.

Judge Lachs was aware of these problems since it was evident that proponents of preferred international legal propositions would endeavor to find a home for their preferences within the realm of *jus cogens*. Judge Lachs addressed this issue by observing that it would be possible for everybody to "argue for or against the *jus cogens* character of any particular rule of international law."[30]

This was resolved by the critical decision to refer, pursuant to Article 66 of the Vienna Convention, disputes concerning the application of Articles 53 or 64 to the World Court or to arbitration. Article 64, entitled "Emergence of a new peremptory norm of general international law (*jus cogens*)," provided "If a new peremptory norm of general international law emerges, any existing treaty which is in conflict with that norm becomes void and terminates."[31]

An American participant in the Vienna negotiations has indicated that "The inclusion of acceptable dispute settlement provisions relating to peremptory norms and to the whole of Part V [of the Convention] was the key to the successful conclusion of the Conference."[32]

Candidates for Jus Cogens Status

The International Law Commission's decision to open the door to the identification of peremptory norms has fostered efforts to identify those subjects which appear to have gathered sufficient support to be characterized as *jus cogens* principles. Despite the unwillingness of the ILC and the Vienna Conference to confirm specific peremptory norms. Judge Lachs in his own words stated "I supported the suggestion to have the article in question [Article 53] enumerate a series of examples."[33] He favored inclusion of basic humanitarian principles and world order concepts. In the first category, he mentioned the prohibition of slavery, violations of the laws or customs of war, and of crimes against humanity including genocide and racial discrimination.[34] In the second category were the outlawry of piracy, aggressive war, the use of force, and

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30 *See* M. Lachs, *supra* note 1, at 210. Citing G. Schwarzenberger, *International Jus Cogens?* 43 TEXAS L. REV. 455 (1965).

31 *Supra* note 3.

32 R. Rosenstock, *Peremptory Norms -- Maybe Even Less Metaphysical and Worrisome*, 5 DENV. J. INT'L L. 167 (1975). For an account of national positions and votes taken on proposed articles at the Vienna Conference, *see* S. ROSENNE, THE LAW OF TREATIES, A GUIDE TO THE LEGISLATIVE HISTORY OF THE VIENNA CONVENTION 87, 290 (1970). The position of the United States has been described by R.D. Kearney and R.E. Dalton, *The Treaty on Treaties*, 64 AM. J. INT'L L. 536-538 (1970).

33 *See* M. Lachs, *supra* note 1, at 340, n. 785.

34 *Id.* at 206-208.

maintenance of the sacred trust established in the Covenant of the League of Nations whereby the well-being and development of peoples inhabiting former colonial areas and territories were to be furthered.[35] Lachs selected the foregoing for *jus cogens* status because they consisted of the obligations of a State towards "the international community as a whole. . . . In view of the importance of the rights involved, all states can be held to have a legal interest in their protection."[36]

Judge Lachs in tracing the evolution of specific precepts referred to the writings of J.C. Bluntschli who argued that "*La pleine mer est ouverte au commerce et à la pêche de toutes les nations et de tous les individus.*"[37] By implication Judge Lachs endorsed the freedom of the seas principle as a peremptory norm.

The collective efforts of a number of highly qualified American experts provide important guidance respecting the substantive content of *jus cogens*. After noting that the content of *jus cogens* "is not agreed,"[38] it was suggested that *jus cogens* norms "might include rules prohibiting genocide, slave trade and slavery, apartheid and other gross violations of human rights, and perhaps attacks on diplomats."[39] Additionally, this body of lawyers emphasized that basic human rights might be accorded the protection of the *jus cogens* principle. Specific attention was drawn to genocide, slavery or the slave trade, the murder of or causing the disappearance of individuals, torture or other cruel, inhuman, or degrading treatment or punishment, prolonged arbitrary detention, and systematic racial discrimination.[40]

The 1987 Restatement clearly considered "that the principles of the United Nations Charter prohibiting the use of force (Comment h) have the character of *jus cogens*."[41] Additionally, Ago would include as examples of *jus cogens* "*protection des droits essentiels de la personne humaine en temps de paix et en temps de guerre . . [and] les règles qui interdisant les atteintes à l'indépendance et à l'égalité souveraine des Etats. . . .*"[42]

The principle of the sovereign equality of States is the historic basis for their freedom to engage in the use, exploration, and exploitation of the *res communis* areas and natural resources of the universe. Applying this to the ocean, Sir Hersch Lauterpacht wrote in 1950 that

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35 *Id.*

36 *Id.* at 208, citing Barcelona Traction, Light and Power Company, Limited, Second Phase, Judgement, 1970 I.C.J. paras. 33, 34, 35.

37 J.C. BLUNTSCHLI, LE DROIT INTERNATIONAL CODIFIÉ, 232 (3rd ed., 1881). M. Lachs, *supra* note 1, at 201.

38 RESTATEMENT (THIRD), FOREIGN RELATIONS LAW OF THE UNITED STATES §102, Reporter's notes 6, 34 (1987).

39 *Id.*

40 *Id.* at §702, 161 and 167. Compare, R. Ago, *supra* note 1, at 324, n. 37.

41 *Supra* note 38, §102, k., at 28. Compare R. Ago, *supra* note 1, at 324, n. 37.

42 R. Ago, *supra* note 1, at 324, n. 7.

> "if a State were to proclaim an exclusive right of navigation, jurisdiction or exploitation of what is regarded by the generality of States as part of the high seas, the absence of protest would hardly make any difference to the legal position -- in the same way as the manifest illegality of any other action would preclude it from becoming a valid basis for precedent."[43]

He urged that an effort to establish national sovereignty over submarine areas was "so wrongful in relation to any particular State or so patently at variance with general international law as to render [a national claim] wholly incapable of becoming the source of a legal right."[44]

Judge Lauterpacht's observations have relevance to the international law of outer space. The high seas like the geographical reaches of outer space constitute *res communis* areas. To the extent that the world community derives particular advantage from according *jus cogens* status to the freedom of the high seas it may be urged that the same *jus cogens* status would advance mankind's best interests in outer space. Such reasoning is supportable by the basic policy underlying the principle of peremptory norms, namely, that they are to be applied to serve basic interests, values, wants, and needs.

Support for this conclusion is to be found in Sir Humphrey Waldock's characterization of the *jus cogens* principle. In his 1963 report to the ILC, he indicated that the substantive content of the *jus cogens* principle was "not immutable and incapable of abrogation or amendment in the future."[45]

Professor Jiménez de Aréchaga in raising the question of whether an international agreement authorizing the act of piracy would be sustainable concluded that such an agreement would be "void."[46] Moreover, since *jus cogens* is a living principle "the traditional definition of piracy may be extended to cover hijacking of aeroplanes or the opium and drug conventions expanded to include synthetic drugs."[47]

Writing in 1965 C.W. Jenks treated *jus cogens* as having a foundation in international public policy. Applying this premise to outer space activities, he concluded that "the prohibition of appropriation [of

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43 H. Lauterpacht, *Sovereignty over Submarine Areas*, 27 BRIT.Y. B. INT'L L. 388, citing in support P. Guggenheim, *La Validité et la Nullité des Actes Juridiques Internationaux*, 74 R.C.A.D.I. 195 (No. 1, 1949).

44 *Id.* at 397. Although the word "void," which is used in Article 53 of the Vienna Convention, was not employed, this seems to be the import of Lauterpacht's reasoning.

45 2 Y.B. INT'L. L. COMM'N 53 (1963).

46 E. Jiménez de Aréchaga, *International Law in the Past Third of the Century*, 159 R.C.A.D.I. 67 (No. 1, 1978).

47 *Id.*

outer space and celestial bodies] rests essentially on grounds of international public policy."[48]

Of special interest to the students of the international law of outer space is the suggestion of Judge Ago. In 1972 he identified as peremptory norms "*les règles qui assurent à tous les membres de la communauté internationale la juissance de certains biens communs (haute mer, espace extra-atmosphérique, etc.)*"[49]

In 1977 Marjorie M. Whiteman, following a review of the emergence of the *jus cogens* principle, presented a list of subjects which she described as offering a "serious challenge" to persons qualified to identify such principles. Among them was "appropriation of outer space and/or celestial bodies."[50]

Writing in 1979 Professor Kolosov pointed to the role of customary international law in filling in the substance of *jus cogens* principles. His observations were directed specifically at orbital activity as it had developed. It was Kolosov's view that even before the entry into force in 1967 of the Principles Treaty[51] the *jus cogens* principle required that "outer space shall be open to exploration and exploitation by all nations without any discrimination whatsoever, on the basis of equality, and that it is not subject to national appropriation by claims of sovereignty over it by use or occupation or by any other means."[52]

In 1980 Professor Marcoff made brief mention of *jus cogens* in a space law context.[53] In 1983 the present author suggested that Article 1, and, in particular, paragraphs 1 and 2, and Article 2 of the 1967 Principles Treaty[54] met the enumerated criteria for *jus cogens* status.[55] Following the 1983 presentation to the International Institute of Space Law, Judge Lachs joined in the discussion and was supportive of the proposal.

As time has gone on there have been assertions that the *jus cogens* norm appertains to more than the suggested paragraphs of Article 1 and

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48 C.W. JENKS, SPACE LAW 200 (1965).

49 R. Ago, *supra* note 1, at 324, n. 37.

50 M.M. Whiteman, *Jus Cogens in International Law, with a Projected List*, 7 GA. J. INT'L & COMP. L. 626 (1977).

51 Treaty on Principles Governing the Activities of States in the Exploration and Use of Outer Space, Including the Moon and Other Celestial Bodies, Jan. 27, 1967 (entered into force for the United States Oct. 10, 1967), 18 UST 2410; TIAS 6347; 610 UNTS 205 (hereinafter Principles Treaty).

52 Y. Kolosov, *Legal and Political Aspects of Space Exploration*, INT'L AFF. (Moscow) 88 (March 1979). The last clause of the quotation almost perfectly paraphrases art. 2 of the Principles Treaty. The first clause captures the essence of art. 1, para. 2 of the Treaty.

53 M.E. Marcoff, *Sources du droit international de l'espace*, 168 R.C.A.D.I. 83, 100 (No. 3, 1980).

54 *Supra* note 51.

55 C.Q. Christol, *Jus Cogens Principle and Space Activities*, 26 PROC. COLLOQ. L. OUTER SPACE 1-9 (1984), reprinted in C.Q. CHRISTOL, SPACE LAW: PAST, PRESENT, AND FUTURE 443 (1991).

Article 2 of the Principles Treaty. In 1986 the representative of Chile to the Legal Sub-Committee of the United Nations Committee on the Peaceful Uses of Outer Space, Mr. Gonzalez, urged that the terms of Articles 3 and 4, as well as 1 and 2, and additionally paragraph 1 of Article 11 of the 1979 Moon Agreement[56] occupied *jus cogens* status.[57] In 1988 Professor Hannaikainen, in a very comprehensive analysis concluded that there is a "presumption of the peremptory character of the prohibition of national appropriation of areas of outer space, including celestial bodies."[58]

Recently, A.D. Terekhov has suggested that a violation of Article 6 of the 1967 Principles Treaty or of a *jus cogens* principle would enable an aggrieved party to invoke the principle of international responsibility.[59]

Conclusion

It is evident that there has been a rather limited effort on the part of space law experts, and by other international lawyers to obtain *jus cogens* status for the fundamental provisions contained in Article 1 of the 1967 Principles Treaty. The guarantee to all States of free and equal access to outer space and to celestial bodies and the right to engage in the exploration, use, and exploitation of the area and its resources is so fundamental to the achievement of the province of mankind principle that these guarantees deserve the status of peremptory norms. The same can be said of the *res communis* principle appearing in Article 2 of the same agreement. The fact that the candidacy of these principles has been rather dormant and that the World Court has not been called upon to give its stamp of approval should not lead to the conclusion that these central guarantees do not qualify for *jus cogens* status.

To effect such a result it will be necessary to reach agreement on the suitability of the criteria mentioned above. Following this it will be necessary to obtain the focused attention of international lawyers, both specialists in the space law field and generalists, so that informed decisions can be taken. In approaching such a task a case will have to be made that the foregoing principles are, in the words of Article 53 of the Convention on Treaties, "norm[s] accepted and recognized by the international community of States as a whole. . . ."[60] Justification for this conclusion can rest on the larger proposition that such a result falls within the universal conscience of mankind.

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56 Agreement Governing the Activities of States on the Moon and Other Celestial Bodies, U.N. Doc. A/RES/34/68, 14 Dec. 1979; 18 I.L.M. 1434 (1979).

57 U.N. Doc. A/AC.105/C.2/SR.439, *at* 3 (5 April 1986).

58 L. Hannikainen, *supra* note 1, at 591.

59 A.D. Terekhov, *International Responsibility for Using Nuclear Power Sources in Outer Space -- Reflections on the Text Adopted by COPUOS*, 34 PROC. COLLOQ. L. OUTER SPACE 147 (1992).

60 *Supra* note 3.

Aside from the novelty of the "province of mankind" concept in Article 1 of the Principles Treaty the remaining substantive provisions, as well as the terms of Article 2, were statements of general international law. Free and equal access to non-sovereign areas and the *res communis* principle applicable to the ocean are assured by customary international law and by formal international agreements.

Both legal theory and practical experience have suggested that free and equal access to the *res communis* area of the ocean qualifies for *jus cogens* status. Because of the similarities with the exploration, exploitation, and use of outer space and its natural resources with ocean activities, the former should also enjoy *jus cogens* status. Although the historic experience with outer space is more limited than that of the free uses of the ocean, yet otherwise and in many respects, the parallels are striking.

Judge Lachs was a versatile and innovative jurist. His long involvement in international space law, as reflected in his high offices and his critical writings, have identified him as a singularly authoritative figure in the field.

His thoughtful analysis of the legal issues of his time, which have lent themselves to the progressive development of international law, is and will remain especially significant in the years ahead. The fact that he allocated the subject of *jus cogens* a chapter out of the 15 chapters in his 1984 lectures at The Hague is evidence of the importance he attached to the subject.

He was clear that the substantive principle of *jus cogens* was a vibrant and living element of international law, one that was rich in its prospects for progressive development. In this respect his challenge to the future is quite simple.

Manfred Lachs might have said something like this:

> "The members of the international legal community, in order to serve the universal conscience of mankind and to achieve the security resulting from the employment of orderly legal processes, must participate actively in the creative challenges provided by law. This is expected. Nothing less will be allowed."